



CHAPTER 35.

An Act to extend the period during which payments may be made under the Agriculture Act, 1937, in connection with the eradication of bovine tuberculosis, and to amend the Horse Breeding Act, 1918.

[30th June 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

BOVINE TUBERCULOSIS.

1.—(1) The period, limited to expire on the thirtieth day of September, nineteen hundred and forty-eight, during which the Minister has power to make payments for the purpose of securing so far as practicable that herds of cattle will be free from tuberculosis (which power was conferred by subsection (1) of section twenty of the Agriculture Act, 1937, for a period extended to that day by subsection (1) of section four of the Agriculture (Miscellaneous War Provisions) (No. 2) Act, 1940) shall be extended so as to continue for ten years from that day, and may be further extended for five years by order made by the Minister with the approval of the Treasury on not more than three successive occasions, so as to continue for fifteen, twenty or twenty-five years, as the case may be, from that day :

Extension of period for payments in connection with eradication of bovine tuberculosis.
1 Edw. 8 &
1 Geo. 6. c. 70.
3 & 4 Geo. 6. c. 50.

No order shall be made under this subsection unless a draft thereof has been laid before Parliament and has been approved by a resolution of each House of Parliament.

PART I.
—*cont.*

(2) The power to make orders conferred on the Minister by the preceding subsection shall be exercisable by statutory instrument.

(3) In accordance with subsection (1) of this section, section twenty-one of the Agriculture Act, 1937 (which, as amended by the said enactment of 1940, confers general power on the Minister to expend sums with the object of eradicating diseases of animals, subject to a proviso excluding the exercise of that power after the thirtieth day of September, nineteen hundred and forty-eight, as regards payments which until that day he is empowered to make only by virtue of the said section twenty) shall have effect with the substitution, for the reference therein to that day, of a reference to the day to which the period mentioned in subsection (1) of this section is continued.

19 & 20 Geo. 5.
c. 17. (4) Any increase attributable to this Part of this Act in the sum required by sub-paragraph (1) of paragraph 1 of the Third Schedule to the Local Government Act, 1929, as amended by subsection (4) of section twenty-seven of the Agriculture Act, 1937, to be paid out of moneys provided by Parliament into the Diseases of Animals Account to defray expenses incurred under section twenty of the Agriculture Act, 1937, shall be paid out of moneys so provided.

PART II.

LICENSING OF STALLIONS.

Keeping of
stallions to
be subject
to licence
or permit.

2.—(1) Subject to the provisions of subsection (2) of this section, it shall not be lawful for any person to keep a stallion which has attained the prescribed age unless a licence or permit in respect of the stallion is for the time being in force.

(2) The preceding subsection shall not apply to—

- (a) any stallion which attained the age of four years before the coming into operation of this Part of this Act; or
- (b) a stallion being a thoroughbred or a pony of a prescribed breed;

but it shall not be lawful for a person who keeps a stallion which falls within paragraph (a) of this subsection, or a stallion which falls within paragraph (b) thereof and which has attained the prescribed age, to travel it for use for breeding purposes or to exhibit it on any premises not in his occupation with a view to its use for breeding purposes, or to permit it to be so travelled or exhibited, unless a licence in respect of the stallion is for the time being in force.

(3) Any person who contravenes either of the preceding subsections shall be liable on summary conviction to a fine not exceeding twenty pounds.

(4) For the purposes of this section, a person shall be deemed to keep a stallion if he owns it or has the control of it.

(5) The preceding provisions of this section shall be in substitution for section one of the Horse Breeding Act, 1918 (in 8 & 9 Geo. 5. this Part of this Act referred to as "the principal Act"), which section requires the licensing of stallions as regards their travelling or exhibition for service, and not as regards their being kept, and accordingly—

- (a) the power conferred on the Minister by section two of the principal Act to suspend a licence shall cease to be exercisable ;
- (b) a reference to use for breeding purposes shall be substituted for the references to service of mares and to use for stud purposes in the proviso to subsection (2) of that section (which specifies the grounds on which a licence may be refused or revoked) ; and
- (c) so much of section six of the principal Act as limits the powers of inspection and examination of stallions conferred by that section to stallions travelled or exhibited as aforesaid shall cease to have effect.

3.—(1) The Minister shall not refuse to grant a licence in respect of a stallion on the ground specified in paragraph (a) or (b) of the proviso to subsection (2) of section two of the principal Act, namely that it appears to him that the stallion is affected with a contagious or infectious disease or is affected with any other disease or defect prescribed as a disease or defect rendering the stallion unsuitable for use for breeding purposes, and he shall not revoke a licence on that ground, if it appears to him that the stallion is so affected temporarily, and accordingly the word " permanently " shall be inserted before the word " affected " in both places where it occurs in those paragraphs.

(2) If it appears to the Minister that a stallion in respect of which a licence is in force, or is about to be granted, is temporarily affected by a disease or defect rendering it unsuitable for use, or for use in any particular way, for breeding purposes, he may, by notice served in the prescribed manner, make it a condition of the licence that the stallion shall not, for a specified period or until further notice, be used, or be used in that way, as the case may be, for breeding purposes.

(3) Section four of the principal Act (under which reference to a referee may be required if the Minister refuses to grant, or revokes, a licence) shall apply, as it applies in those cases, if the Minister serves a notice in pursuance of this section.

PART II.
—cont.

(4) If any person allows a stallion to be used in contravention of a condition imposed in pursuance of this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

Power to
refuse or
revoke licence
on ground of
inferior
conformation
or physique.

4. In the proviso to subsection (2) of section two of the principal Act (which specifies the grounds on which a licence may be refused or revoked), in paragraph (d), for the words "by reason of its defective conformation or physique," there shall be substituted the words "by reason of its defective or inferior conformation or physique."

Grant of
permits in
respect of
stallions.

5.—(1) Where the Minister has refused, or has power to refuse, to grant a licence in respect of a stallion not falling within paragraph (a) or (b) of subsection (2) of section two of this Act, or has revoked or proposes to revoke a licence in respect of such a stallion, but it is in his opinion expedient to authorise it to be kept entire, he may, on application being made in the prescribed manner and on compliance with the prescribed conditions as to inspection, examination and marking, grant to the owner of the stallion a permit in the prescribed form in respect of the stallion and also, if so requested, a certified copy thereof, on payment of such fee (not exceeding one guinea) as may be prescribed.

(2) The Minister may refuse to grant a permit on any grounds which appear to him sufficient, and may grant a permit subject to any conditions which he may think fit to impose.

(3) The Minister may revoke a permit if any condition subject to which that permit, or any other permit to the same person, has been granted is contravened or not complied with.

(4) If any condition subject to which a permit is granted is contravened or not complied with, the holder of the permit shall be liable on summary conviction to a fine not exceeding twenty pounds.

(5) Subsection (2) of section two of the principal Act (under which the grant of a licence is as of right), and section four thereof (under which reference to a referee may be required if the Minister refuses to grant, or revokes, a licence), shall not apply to a permit, but save as aforesaid the provisions of the principal Act which relate to a licence shall apply to a permit as they apply to a licence.

Marking of
stallions.

6.—(1) The following provisions of this section shall have effect for the purpose of securing the marking of stallions.

(2) In subsection (2) of section two of the principal Act (which provides for the grant of licences in respect of stallions on compliance with conditions as to inspection and examination thereof) the words "and marking" shall be inserted after the word "examination", and in section six of the principal Act (which confers power on persons authorised by the Minister to inspect and examine stallions) the words "and mark with a prescribed mark in the prescribed manner" shall be inserted after the word "examine" in both places where it occurs in that section.

(3) If any person, with intent to deceive, places on a stallion a prescribed mark or a mark so closely resembling a prescribed mark as to be calculated to deceive, or defaces a mark placed on a stallion for the purposes of this Act, he shall be liable on summary conviction to imprisonment for a term not exceeding three months, or to a fine not exceeding twenty pounds, or to both such imprisonment and such fine.

7.—(1) The Minister may, by notice served in the prescribed manner and in accordance with this section, require that any stallion which has attained the prescribed age at the date when the notice is served and in respect of which no licence or permit is for the time being in force, shall be slaughtered or castrated within such time after the notice takes effect as may be specified in the notice :

Power to order
slaughter or
castration of
stallions.

Provided that this subsection shall not apply to—

- (a) any stallion which attained the age of four years before the coming into operation of this Part of this Act ; or
 - (b) a stallion being a thoroughbred or a pony of a prescribed breed.
- (2) For the purposes of this section, a notice shall be served—
- (a) in a case where the notice is served together with a notice of a refusal to grant a licence or permit, on the applicant for the licence or permit ;
 - (b) in a case where the notice is served together with a notice of revocation of a licence or permit, on the person stated in the licence or permit to be the owner of the stallion ;
 - (c) in any other case, on any person for the time being having the control of the stallion.

(3) If a notice under this section is duly served on a person who is not the owner of the stallion, it shall be the duty of that person forthwith to take all reasonable steps to inform the owner thereof, and, if he fails to do so, he shall be liable to indemnify the owner against any loss which the owner may suffer by reason of the failure.

PART II.
—cont.

(4) A notice duly served under this section shall take effect at the time of the service thereof :

Provided that—

- (a) if a licence or permit in respect of the stallion has not at any time been applied for, or has ceased to be in force under subsection (2) of section three of the principal Act (which relates to transfer of ownership), and before the expiration of a period of fourteen days from the service of the notice application is duly made for a licence or permit, the notice shall not take effect unless and until the application is refused and, where the application is for a licence, the time for applying for a referee's inspection has expired, nor, if such an inspection is duly applied for, unless and until the Minister notifies the applicant that he has decided to confirm the refusal ; and
- (b) if the Minister has refused to grant, or has revoked, a licence in respect of the stallion, the notice shall not take effect until the time for making application for a referee's inspection has expired, nor, if application is duly made for such an inspection, unless and until the Minister notifies the applicant that he has decided to confirm the refusal or revocation.

(5) If any person on whom a notice has been duly served under this section fails to comply with the notice, he shall be liable on summary conviction to a fine not exceeding three pounds for every day during which the failure continues.

(6) If any person, without the permission of the Minister, at any time after a notice has been duly served under this section removes (otherwise than for the purpose of slaughter or castration) the stallion to which the notice relates from the place where it is at the time of the service of the notice, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(7) If a notice duly served under this section is not complied with, the Minister may cause the stallion to which the notice relates to be slaughtered or castrated at the expense of the person on whom the notice was served, and the cost of the slaughter or castration shall be a debt due from that person to the Crown.

(8) The provisions of this section shall be in addition to, and not in substitution for, the provisions of this Act imposing penalties with respect to the keeping of a stallion without a licence or permit.

8.—(1) In subsection (2) of section two of the principal Act (which provides that the grant of a licence shall be on application made in the prescribed manner), there shall be inserted after the word "manner" the words "and within the prescribed time or such further time as the Minister may in any case allow".

Time for
grant of
licences, and
duration of
licences and
permits.

(2) It shall be a defence for a person charged with a contravention of subsection (1) or subsection (2) of section two of this Act to prove that, at the date when the contravention is alleged to have occurred, application had been duly made for a licence or permit, or, as the case may be, for a licence, in respect of the stallion and that the Minister had not given notice of his decision on that application.

(3) A licence (including a licence granted before the coming into operation of this Part of this Act if in force at the coming into operation thereof), or a permit, in respect of a stallion shall remain in force until one of the following events occurs, that is to say until—

- (a) the licence or permit is revoked, or ceases to be in force after a change of ownership by virtue of the provision of subsection (2) of section three of the principal Act in that behalf ; or
- (b) the stallion dies or is castrated ; or
- (c) the stallion has been outside Great Britain for a consecutive period of fourteen days or such longer consecutive period as the Minister may allow ; or
- (d) in the case of a permit, a period specified therein for its duration expires.

In computing for the purposes of this subsection how long a stallion has been outside Great Britain, the period of its absence shall be deemed to begin at the time when it is put on board a ship or aircraft for the purpose of being carried out of Great Britain and to end at the time when it is landed in Great Britain on its return.

(4) The last preceding subsection shall be in substitution for subsection (1) of section three of the principal Act (which requires annual renewal of licences).

(5) A licence shall not be revoked on the ground only of the stallion's being affected in its wind if refusal on that ground of renewal of the licence would have been prohibited by the proviso to the said subsection (1) of section three, that is to say, if the stallion has attained such age as may be prescribed and a licence in respect thereof has been in force for such number of years as may be prescribed.

(6) It shall be a defence for a person charged with a contravention of section two of this Act to prove that, at the date when the contravention is alleged to have occurred, a licence in respect of the stallion had been refused or revoked, and either that the time for applying for a referee's inspection had not expired or that an application had been duly made for such an inspection and the Minister had not notified the applicant of his decision as to confirmation of the refusal or revocation.

PART II.

—*cont.*

Presumptions
as to licence
or permit
being in
force, and as
to age of
stallions.

9.—(1) For the purposes of any proceedings for a contravention of subsection (1) of section two of this Act alleged to have occurred at any time, the burden of proof that a licence or permit in respect of the stallion was in force at that time shall lie on the person charged, and until the contrary is proved it shall be presumed that no licence or permit in respect thereof was then in force.

(2) The preceding subsection shall apply in relation to a contravention of subsection (2) of section two of this Act with the omission of the references to a permit.

This subsection shall be in substitution for section eight of the principal Act.

(3) For the purposes of any proceedings for a contravention of subsection (1) of section two of this Act alleged to have occurred at any time, and for the purposes of any proceedings under or arising out of section seven of this Act by virtue of a notice served under that section at any time, it shall be presumed until the contrary is proved that the stallion had attained the prescribed age at that time and that it did not attain the age of four years before the coming into operation of this Part of this Act, and, for the purposes of any proceedings for a contravention of subsection (2) of section two of this Act alleged to have occurred at any time, it shall be presumed until the contrary is proved that the stallion had attained the prescribed age at that time.

(4) Notwithstanding anything in the last preceding subsection, it shall be a defence for a person charged with a contravention of subsection (1) of section two of this Act alleged to have occurred at any time to prove that the stallion was not bred by him, that he took all reasonable steps to ascertain its age, and that he had reason to believe that it had not attained the prescribed age at that time or to believe that it attained the age of four years before the coming into operation of this Part of this Act.

(5) The last preceding subsection shall apply in relation to a contravention of subsection (2) of section two of this Act, with the omission of the reference therein to proof of reason to believe that the stallion had attained the age of four years before the coming into operation of this Part of this Act.

Periodical
inspections.

10. The Minister shall secure the inspection and examination of a licensed stallion at such intervals as he may consider proper for the purpose of ascertaining that there is no ground for revoking the licence in respect of the stallion.

Special
provision for
ponies in
particular
districts.

11. Rules under the principal Act setting out the breeds of ponies prescribed for the purposes of this Part of this Act may provide that for those purposes ponies of a specified breed shall be treated as of a prescribed breed only so long as they are

within a specified district and this Part of this Act shall have effect accordingly.

PART II.
—*cont.*

12.—(1) Any increase attributable to this Part of this Act in the expenses to be defrayed out of moneys provided by Parliament under section eleven of the principal Act shall be defrayed out of moneys so provided. Expenses, and fines, under Part II.

(2) Subsection (2) of section eleven of the principal Act (which provides for payment to the Minister of fines recoverable under that Act) shall cease to have effect.

13.—(1) This Part of this Act shall come into operation on such date as the Minister may by order appoint. Commence-
ment,

The power conferred by this subsection shall be exercisable by statutory instrument. construction,
citation and
extent of

(2) This Part of this Act shall be construed as one with the principal Act, and that Act and this Part of this Act may be cited together as the Horse Breeding Acts, 1918 and 1948. Part II, and
repeal.

(3) In the principal Act and in this Part of this Act—

except where the context otherwise requires, the expressions “licence” and “permit” mean respectively a licence and a permit for the purposes thereof;

the expression “thoroughbred” means a horse entered or eligible for entry in the General Stud Book.

(4) In computing the age of a stallion for the purposes of this Part of this Act, the stallion shall be treated as having attained the age of one year on the first day of January next after the year in which it was foaled.

(5) The enactments specified in the Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

(6) This Part of this Act shall not apply to Northern Ireland.

PART III.

SHORT TITLE AND INTERPRETATION.

14.—(1) This Act may be cited as the Animals Act, 1948.

Short title
and

(2) In this Act the expression “the Minister” means, except in the application of Part II thereof to Scotland, the Minister of Agriculture and Fisheries, and, in the application of Part II thereof to Scotland, the Secretary of State. interpretation.

SCHEDULE.

Section 13.

REPEALS.

Session and Chapter.	Short title.	Extent of repeal.
8 & 9 Geo. 5. c. 13.	The Horse Breeding Act, 1918.	Section one. In section two, the words " and suspend " and the words " or suspend ". In section three, subsection (1). In section four, in subsection (1), the words " or suspend ". In section five, in paragraph (c), the words " or suspension ". In section six, the words " which is or which he has reason to believe has been travelled for service, or exhibited as afore-said ", and the word " such ". Section eight. In section ten, the words " and suspension " in both places where they occur. In section eleven, subsection (2). In section thirteen, the words " and subsection (2) of section eleven ".

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